

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robyn Howell	Team: Team # 4	CCRB Case #: 200907373	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 05/13/2009 11:50 AM	Location of Incident: § 87(2)(b) .	18 Mo. SOL 11/13/2010	Precinct: 113
Date/Time CV Reported Wed, 05/13/2009 11:56 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/13/2009 11:56 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Dennis Jaeger	09389	940297	113 PCT
2. POM Joseph Bentivegna	13790	934482	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dennis Jaeger	Abuse: PO Dennis Jaeger stopped § 87(2)(b) at § 87(2)(b)	A . Exonerated
B . POM Joseph Bentivegna	Abuse: PO Joseph Bentivegna stopped § 87(2)(b) at § 87(2)(b)	B . Exonerated
C . POM Dennis Jaeger	Force: PO Dennis Jaeger pointed his gun at § 87(2)(b)	C . Unsubstantiated
D . POM Dennis Jaeger	Discourtesy: PO Dennis Jaeger acted rudely toward § 87(2)(b)	D . Unsubstantiated

Case Summary

On May 13, 2009, § 87(2)(b) filed a complaint with the CCRB against members of the NYPD on behalf of her brother § 87(2)(b) (Encl.6A-B). She was not a witness to the incident. On May 13, 2009, at approximately 11:50 a.m., PO Dennis Jaeger and PO Joseph Bentivegna from the 113th Precinct approached § 87(2)(b) in the front yard of § 87(2)(b)'s home located at § 87(2)(b) in Queens because he was observed engaging in actions indicative of casing a victim or location. The following allegations resulted:

Allegation A: PO Dennis Jaeger stopped § 87(2)(b) at § 87(2)(b)

Allegation B: PO Joseph Bentivegna stopped § 87(2)(b) at § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b), therefore it is recommended that **allegations A and B be exonerated.**

Allegation C: PO Dennis Jaeger pointed his gun at § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) therefore it is recommended that **allegation C be closed as unsubstantiated.**

Allegation D: PO Dennis Jaeger acted discourteously towards § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) therefore it is recommended that **allegation D be closed as unsubstantiated.**

Results of Investigation

Civilian Statement(s)

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black male, weighs approximately § 87(2)(b) and has black hair and eyes.

§ 87(2)(b) provided a brief phone statement on May 26, 2009 (Encl.7). He was interviewed at the CCRB on July 7, 2009 (Encl.8A-F). § 87(2)(g) On May 13, 2009, § 87(2)(b) was at his sister, § 87(2)(b)'s house located at § 87(2)(b) in Queens working on her yard. § 87(2)(b)'s back faced the street. He bent down and picked up a pick axe, approximately 4 feet tall and started raking the grass with the pick axe. He felt something cold on the top left side of his buttocks. He jumped and used his hand to swat behind his back. PO Jaeger told him to put his hands up and § 87(2)(b) noticed that he had a gun in his hand. PO Jaeger was with PO Bentivegna. PO Jaeger was described as either a white or Hispanic male approximately 5'4", solidly built, approximately 180 pounds, with a light brown low hair cut, and a slight mustache. He pointed his gun into § 87(2)(b)'s left rib and tried to push him into a wall. PO Bentivegna was described as a white male, slightly taller than § 87(2)(b) who is 5'7" between 160-170 pounds, had a thin frame and black hair.

§ 87(2)(b) dropped the pick axe and held onto a railing approximately 5 feet tall that was in front of the house. PO Jaeger asked § 87(2)(b) what he was doing there and he replied that he was doing some work for his sister. PO Jaeger asked him what was the address and § 87(2)(b) told him that he knew the address but did not provide it. § 87(2)(b) asked PO Jaeger why did he pull his gun on him and he replied that he did not pull his gun on him. PO Jaeger asked § 87(2)(b) for his ID and green

card and § 87(2)(b) told him that he was not an immigration officer. § 87(2)(b) removed his ID from his wallet which was located in his right back pocket and gave it to PO Jaeger. He also gave him a PBA card. § 87(2)(b) removed his money from his front right pocket and his keys from his left back pocket and put them on the front porch. PO Jaeger asked him what he had in his other pocket and § 87(2)(b) told him to look and showed him that he did not have anything. PO Jaeger looked at his information and then threw the ID on the ground. PO Jaeger began looking around the house. § 87(2)(b) came outside of the house. § 87(2)(b) asked PO Jaeger what happened. PO Jaeger replied that he was there to protect her property. The officers left.

Witness: § 87(2)(b) UNKNOWN

- § 87(2)(b) did not want to be involved in the complaint but provided a brief statement over the phone on August 10, 2009.

At the time of the incident, § 87(2)(b) was in her car across the street from the incident location. She did not know § 87(2)(b) before this incident. She observed two uniformed white male officers pull into the driveway. § 87(2)(b) was bent over cleaning the yard and digging cement when the officers approached him. She believed that both officers had their guns drawn but was uncertain if it was pointed at any part of § 87(2)(b)'s body. § 87(2)(b) went outside and told the officers that § 87(2)(b) was her brother. The officers' then left. § 87(2)(b) exited her vehicle and asked § 87(2)(b) why the officers' had their guns out and § 87(2)(b) told her that one of the officers said there was a burglary in the neighborhood. § 87(2)(b) did not recall any other details about the incident (Encl.15H).

Attempts to Contact Civilians

On September 2, 2009 a canvass was conducted at the incident location. Letters were given to the owner of § 87(2)(b) and § 87(2)(b) both located at § 87(2)(b), adjacent to the incident location. No one has contacted the CCRB in regards to this incident.

NYPD Statement(s):

Subject Officer: DENNIS JAEGER

- PO Jaeger is a § 87(2)(b) white male, is § 87(2)(b) and has blonde hair and blue eyes.
- His assignment was sectors D, E, F, and J. He worked with PO Bentivegna, was in uniform and assigned to RMP 1267.

PO Jaeger did not have any relevant memo book entries regarding this incident. He was interviewed at the CCRB on November 19, 2009 (Encl.10A-B).

Handwritten Stop and Frisk Report

The handwritten report indicated that § 87(2)(b) was stopped at 11:15 a.m. after being observed for two minutes in the front yard of § 87(2)(b). He was suspected of burglary because he engaged in furtive movements and actions indicative of casing a victim or location. He was explained why he was stopped. Hands on suspect, was the only physical force that was used. § 87(2)(b) was frisked because of furtive movements. No weapons or contraband was found. § 87(2)(b) was not arrested or issued a summons.

PO Jaeger and PO Bentivegna observed § 87(2)(b) for approximately two minutes in the front yard of the incident location, walking back and forth looking around the house and looking at things in the yard. § 87(2)(b) acted as though he was casing the property and his behavior made it appear as though he did not belong on the property. § 87(2)(b) made eye contact with the officers, immediately turned around, and then picked up something to appear as if he was working on the house. These actions were the “furtive movements” listed on the stop and frisk report. PO Jaeger and PO Bentivegna approached § 87(2)(b) and he was very agitated. He had something in his hand but PO Jaeger could not recall what it was or describe it. He asked § 87(2)(b) what he was doing on the property, whether or not it was his property and if he was doing work on the house because there had been several burglaries in the area. § 87(2)(b) began yelling however PO Jaeger could not recall specifically what he said. § 87(2)(b) was reluctant to answer questions. PO Jaeger did not recall if he or PO Bentivegna withdrew their weapons from their holsters when they approached § 87(2)(b) but said that it was possible that he did. A female identified through investigation as § 87(2)(b) went to the door of the house and asked PO Jaeger what he was doing and stated that she knew § 87(2)(b). PO Jaeger explained to her that they were protecting her property.

PO Jaeger received § 87(2)(b)'s identification but denied throwing it to the ground. He also denied pushing § 87(2)(b).

Subject Officer: PO JOSEPH BENTIVEGNA

- PO Bentivegna is a § 87(2)(b) white male with brown hair and eyes. He is § 87(2)(b).
- On May 13, 2009, he worked with PO Jaeger and his assignment was conditions. He was in uniform and in RMP 1267.

PO Bentivegna did not have any relevant memo book entries regarding this incident. He was interviewed at the CCRB on November 25, 2009 (Encl.12A-B).

PO Bentivegna had a vague recollection of the incident. He only recalled that on the date and time of the incident, he and PO Jaeger stopped § 87(2)(b) outside of the location because he displayed suspicious behavior. He did not recall what § 87(2)(b) did or what actions he and his partner took while they were questioning § 87(2)(b).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b).

Subject Officer(s) CCRB History

- PO Jaeger has been a member of the service for three years and there are no substantiated CCRB allegations against him (Encl.2).
- PO Bentivegna has been a member of the service for five years and there are no substantiated CCRB allegations against him. (Encl.3).

Conclusion

Identification of Subject Officer(s)

PO Jaeger created the stop and frisk report for § 87(2)(b). The roll call indicated that PO Bentivegna was his partner. They both acknowledged stopping and interacting with § 87(2)(b).

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(b) alleged that PO Jaeger used his gun and attempted to push him into a wall. § 87(2)(b)

§ 87(2)(g)

Allegation A: PO Dennis Jaeger stopped § 87(2)(b) at § 87(2)(b)

Allegation B: PO Joseph Bentivegna stopped § 87(2)(b) at § 87(2)(b)

It is not disputed that both officers stopped § 87(2)(b) in the front yard of the incident location. § 87(2)(g)

§ 87(2)(g)

At the time that § 87(2)(b) was stopped, he was raking the grass with a pick axe. PO Jaeger observed § 87(2)(b) walking back and forth looking at the house which appeared to him that § 87(2)(b) was casing the location and or a victim. § 87(2)(g)

When PO Jaeger approached § 87(2)(b) he stated that § 87(2)(b) was evasive when answering questions. § 87(2)(g)

§ 87(2)(b)'s ID also did not indicate that he lived at the incident location. Officers are allowed to stop an individual and ask them probing questions if they have reasonable suspicion that an individual has committed a crime or is about to engage in a crime. § 87(2)(g)

Once a person is stopped, an officer may demand the person's name, address, and an explanation of his conduct N.Y. Crim. Proc. Law, 140.50(1) (McKinney's 1985). Kamins, New York Search & Seizure, p. 2-45 (2009 ed.) (Encl.1) § 87(2)(g)

§ 87(2)(b), it is recommended that **allegations A and B** be closed as **exonerated**.

Allegation C: PO Dennis Jaeger pointed his gun at § 87(2)(b)

§ 87(2)(b) alleged that as he was bent down raking the grass, PO Jaeger approached him by pointing his gun at the top left side of his buttocks. He also stated that PO Jaeger used his gun and pointed it in his rib and tried to push him into a wall. PO Jaeger did not remember if he withdrew his firearm and had it pointed at § 87(2)(b) when he approached him. PO Bentivegna also could not recall if PO Jaeger or if he withdrew his firearm. § 87(2)(b) believed that both officers had their guns drawn but was uncertain if a gun was pointed at § 87(2)(b). § 87(2)(g)

§ 87(2)(g)

. As a result, it is recommended that **allegation C** be closed as **unsubstantiated**.

Allegation D: PO Dennis Jaeger acted discourteously towards § 87(2)(b)

§ 87(2)(b) alleged that PO Jaeger threw his identification on the ground. It is not disputed that PO Jaeger had § 87(2)(b)'s ID to verify who he was, however he denied throwing it to the ground and PO Bentivegna did not recall him doing such. § 87(2)(g)

It is recommended that **allegation D** be closed as **unsubstantiated**.

Team: _____

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Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date